

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 4300-007
SUBJECT: Processing Equal Employment Opportunity (EEO) Complaints of Discrimination	DATE: August 4, 2021
OPI: Office of the Assistant Secretary for Civil Rights	EXPIRATION DATE: August 4, 2026

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1. PURPOSE

This Departmental Regulation (DR) establishes rules and guidelines per [29 Code of Federal Regulations \(CFR\) Part 1614](#), *Federal Sector Equal Employment Opportunity* by which the United States Department of Agriculture (USDA or Department) will process administrative complaints of employment discrimination.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

This Regulation replaces DR 4300-007, *Processing Equal Employment Opportunity (EEO) Complaints of Discrimination*, dated July 12, 2016.

3. SCOPE

- a. This DR covers all informal, formal and class complaints of alleged employment discrimination filed by USDA employees, former employees, and applicants for employment against USDA Mission Areas, agencies, and staff offices.
- b. The DR institutes the provisions of 29 CFR Part 1614 and the U.S. Equal Employment Opportunity Commission's (EEOC), Equal Employment Opportunity Management Directive 110 ([EEO MD-110](#)), *Federal Sector Complaints Processing Manual*.

4. POLICY

- a. It is USDA's policy to provide a workplace free from discrimination and harassment based on race, color, national origin, age (40 and older), disability, sex (including pregnancy), protected genetic information, religion, retaliation for engaging in protected activity, political beliefs, or marital, familial or parental status.
- b. Complaints alleging discrimination on the bases of political beliefs, marital, familial or parental status, and retaliation for filing complaints on these bases are only processed within the Department. They are not appealable to EEOC or any other non-USDA agency or Department. Individuals bringing complaints on these bases will have access to the USDA complaint resolution process, including counseling, Alternative Dispute Resolution, investigation, and a Final Agency Decision.
- c. It is also USDA's policy to process complaints of employment discrimination in a fair and timely manner, in accordance with legal requirements and per [DR 4710- 001](#), *Alternative Dispute Resolution* (ADR), encourage the use of ADR to resolve discrimination complaints as early as possible.

5. ROLES AND RESPONSIBILITIES

- a. The Assistant Secretary for Civil Rights (ASCR) will:
 - (1) Provide leadership;
 - (2) Provide oversight over all areas of the EEO program;
 - (3) Exercise authority over all areas of the EEO complaint process for USDA as described below;
 - (4) Implement the pre-complaint process for staff offices;

- (5) Ensure Mission Areas, agencies, and staff offices follow all civil rights policies, directives, procedures, rules, and regulations as well as findings, and decisions;
 - (6) Hold Mission Area, agency, and staff office Heads and Administrators accountable for civil rights performance;
 - (7) Ensure employees working in USDA's civil rights offices and in the Office of the Assistant Secretary for Civil Rights (OASCR) (including contract employees and consultants) are knowledgeable of current civil rights laws and Federal regulations. Methods include access to up-to-date training and technical assistance;
 - (8) Issue policies, directives, procedures, rules, and regulations to ensure the Department meets its civil rights compliance and enforcement obligations; and
 - (9) Assess Mission Area, agency, and staff office compliance with this DR.
- b. Mission Area and Agency Heads will:
- (1) Establish an EEO compliance and enforcement program per the policies, directives, procedures, rules, and regulations issued by the ASCR;
 - (2) Provide resources, such as, trained, and qualified staff to ensure the Department meets its EEO responsibilities;
 - (3) Evaluate employees on their cooperation and compliance with the EEO complaint process and the responsibilities outlined in this DR;
 - (4) Implement the pre-complaint process (filed by Mission Area, or agency employees) except for Conflict of Interest complaints per Section 7, *Conflict of Interest Complaints*, of this DR and ADR per DR 4710-001;
 - (5) Provide a written EEO counselor report to the OASCR designated division responsible for the acceptance or dismissal of EEO complaints and to the aggrieved person, on the date the Notice of Right to File (NRF) a Formal Complaint is issued to the aggrieved person;
 - (6) Make the ADR process available to complainants at all stages of the EEO process in accordance with DR 4710-001; and
 - (7) Verify the signature of all Inter-Agency Agreements (IAA) reimbursing OASCR in support of the EEO Complaints. The Mission Area or agency will provide reimbursement within 30 calendar days of the beginning of the fiscal year, or 30 calendar days of receipt of their appropriations (if the appropriations have not been received by the beginning of the fiscal year), or will provide a written statement explaining why the funds have not been received, along with a date the funds will be received.

c. Staff Office Heads will:

- (1) Ensure an EEO compliance and enforcement program is being maintained in accordance with the policies, directives, procedures, rules, and regulations issued by the ASCR;
- (2) Maintain staff qualifications by providing up-to-date civil rights training;
- (3) Evaluate employees on their cooperation and compliance with the EEO complaint process and the responsibilities outlined in this DR;
- (4) Make the ADR process available to complainants at all stages of the EEO process in accordance with DR 4710-001; and
- (5) Verify the signature of all IAAs reimbursing OASCR in support of the EEO Complaints process. The staff office will provide reimbursement within 30 calendar days of the beginning of the fiscal year, or 30 calendar days of receipt of their appropriations (if the appropriations have not been received by the beginning of the fiscal year), or will provide a written statement explaining why the funds have not been received, along with a date the funds will be received.

d. EEO Counselors will:

- (1) Advise the aggrieved person (verbally and in writing) of their rights and responsibilities, including the option to participate in traditional EEO counseling or, the ADR program;
- (2) Conduct counseling activities in accordance with instructions contained in the EEO MD-110 and this DR;
- (3) Prepare a written report concerning the issues discussed and actions taken during counseling; and
- (4) Attempt to resolve the complaint.

6. EEO COMPLAINTS

- a. It is USDA's policy to process all complaints of employment discrimination per 29 CFR Part 1614, EEO MD-110, and this DR. All complaints will be handled in a fair and impartial manner. When a complaint is filed about a matter, all documents relating to the matter will be held by OASCR until the complaint is closed and all rights to appeal have been exhausted.

Information in a complaint file may be protected by the *Privacy Act of 1974*, [5 United States Code \(U.S.C.\) § 552a](#), as amended (the Act), and where the Act applies, information is not subject to disclosure.

- b. An employee or applicant may file an individual complaint of employment discrimination in accordance with this DR, if the individual or any specific class of individuals believe they have suffered discrimination in terms, conditions, or privileges of employment, due to:
 - (1) An action or decision (including a failure to act or decide) by an official, non-employee or employee of USDA, and believes that this action or decision was motivated by a discriminatory intent based on their race, color, national origin, age (40 and older), disability, sex (including pregnancy), genetic information, religion, retaliation for protected activity, political beliefs, or marital, familial or parental status; or
 - (2) A policy or practice that has a disparate impact on members of the above-mentioned protected groups. For class complaints, see Section 8, *Class Complaints*, below.
- c. Per EEO MD-110 and any individual internal official time policy, if applicable, Mission Areas, agencies, and staff offices will allow employees (informal aggrieved persons and formal complainants, representatives, and witnesses) reasonable time and opportunity during official business hours to participate in the EEO complaint(s) process in which they are a party, representative, or named as a witness.
- d. Individuals who file informal or formal EEO complainants must fully cooperate in the processing of the complaint (including the scheduling of and attending meetings and interviews, responding to correspondence, and providing requested material or information) and comply with all established timeframes.
- e. Per [29 CFR § 1614.107\(a\)\(7\)](#), *Dismissals of Complaints*, failure to cooperate may result in dismissal of the entire complaint. Notice must be given to the union, where applicable, of formal discussions as defined by 5 U.S.C. Chapter 71, Subpart F: *Labor-Management and Employee Relations*, [5 U.S.C. § 7114\(a\)\(2\)\(A\)](#), *Representation Rights and Duties*.
- f. Managers and supervisors are required to cooperate in all stages of the EEO complaint process, (including any resolution attempts of informal and formal complaints, scheduling of and attending meetings and interviews, responding to correspondence, and providing requested material or information) and comply with all established timeframes. Additionally, federal employees named as witnesses are required to cooperate in all stages of the EEO complaint process, as necessary (including scheduling of and attending meetings and interviews, responding to correspondence, and providing requested material or information) and comply with all established timeframes. EEO Counselors and investigators must be given access to original records. Per [29 CFR § 1614.108](#), *Investigation of Complaints*, DR 4070-735-00, *Employee Responsibility and*

Conduct (2007), and EEO MD-110 failure to cooperate may result in USDA or EEOC drawing an adverse inference that the requested information, or the testimony of the requested individual, would have reflected unfavorably on the party refusing to provide the requested information. Notice must be given to the union, where applicable, of formal discussions as defined by [5 U.S.C. § 7114\(a\)\(2\)\(A\)](#).

- g. The EEO complaint process consists of the informal or pre-complaint and the formal process. Specific timeframes apply to each stage of the EEO complaint process.
- h. USDA encourages employees, and Mission Area, agency, and staff office Heads to informally resolve issues raised in EEO complaints and make the ADR process available to complainants at all stages of the EEO process, per DR 4710-001.
- i. Informal Complaint Processing

- (1) Initial Contact

- (a) An aggrieved person has the right to remain anonymous in the informal complaint process. An aggrieved person must contact a designated EEO Counselor within 45 calendar days of the alleged act of discrimination or, if the claim involves a personnel action, within 45 days of the effective date of the action. Only issues raised with an EEO Counselor (and claims like or related to the counseled issues) may be asserted in a formal complaint of employment discrimination.
 - (b) The aggrieved person will proceed through the informal complaint stage using either traditional counseling or ADR.
 - (c) Mission Areas, agencies, and staff offices will offer ADR to all aggrieved persons at the informal (pre-complaint) stage except when a Mission Area, agency, or staff office documents instances where ADR may not be appropriate, such as an incident reasonably related to the complaint that involved workplace violence, sexual assault or battery, or other criminal activity (see DR 4710-001). If the aggrieved person elects to participate in ADR during the pre-complaint process, management's participation is required.
 - (d) For further information regarding ADR in the informal EEO complaint process, see 29 CFR Part 1614, EEO MD-110, and DR 4710-001.

- (2) Reports

If there is no resolution at the informal stage, the EEO Counselor will issue a NRF to the aggrieved person. Within 15 calendar days from the date of issue, the EEO Counselor is required to provide a written counselor's report to the division within OASCR responsible for the acceptance or dismissal of EEO complaints and to the

aggrieved person. If the EEO Counselor report is not received within 30 calendar days of the issuance of the NRF, OASCR reserves the right to accept the complaint in its entirety. Each Mission Area, agency, and staff office bears the consequences for failure to timely submit an EEO Counselor report.

(3) Posting EEO Counselor Contact and Complaint Processing Procedures

Mission Area, agency, and staff office Heads must post a notice (conspicuously throughout each work location) and electronically on their webpages listing the name and address of its EEO Counselors and their current telephone number. The notice must outline the EEO complaint processing procedures and applicable time limits to start EEO counseling.

j. Formal Complaint Processing

The formal EEO complaint process consists of the following stages: intake (Acceptance and Dismissal Decisions); investigation; the complainant's election for a Final Agency Decision (FAD) by OASCR or of a hearing before the EEOC; OASCR's completion of a FAD, or Final Agency Order (FAO) based on a hearing decision issued by an EEOC Administrative Judge (AJ); the complainant's election to file an appeal of the findings of any FAD or FAO; and Remand.

(1) Intake (Acceptance and Dismissal Decisions)

- (a) After the Informal EEO complaint process, an aggrieved person must file a Formal EEO Complaint with the Department, in the manner provided in the NRF, within 15 calendar days of receipt of the NRF. The complaint does not need to be written or signed if it is submitted in an alternate format to accommodate the complaint filing needs of a person who has Limited English Proficiency (LEP) or a disability).
- (b) Submitting a Formal EEO Complaint after the required 15 calendar day timeframe may result in the dismissal of the complaint unless the timeframe is extended by OASCR. This time limit is subject to waiver, estoppel, and equitable tolling.
- (c) A formal complaint may be mailed, faxed, e-mailed, or submitted in person. Upon receipt, OASCR will acknowledge the complaint and subsequently notify complainants (and their designated representative) of dismissal or acceptance of their complaint(s) for investigation. The notification will also outline their appeal rights.
- (d) All formal EEO complaints must outline the counseled claim(s) and the complainant's wish to pursue the formal EEO complaint process. Any complaint must also be signed by the complainant or their designated representative if that representative is an attorney.

(2) Investigation of Complaints

- (a) OASCR will notify the complainant and the respective Mission Area, agency, or staff office of the issues accepted for investigation. Additionally, OASCR will arrange for an investigation into the issues of the formal EEO complaint. The Report of Investigation (ROI) will include all relevant documentary evidence related to the accepted issues.
- (b) Except in mixed cases (see Section 6j, *Mixed Case Complaint Processing*), within 180 calendar days from the complainant's filing of their complaint, OASCR will provide the complainant with a copy of the ROI.
- (c) If the complaint is amended prior to the issuance of the ROI, the Department will provide a copy of the ROI within 360 calendar days from the initial complaint filing date or 180 calendar days from the date the amendment was filed. If the 180 calendar days elapse without completion of the investigation the complainant has the right to elect a hearing directly with the EEOC or file a civil action in District Court.
- (d) Upon the issuance of the ROI, the complainant will be given the right to elect either a hearing before an EEOC AJ or a FAD on the merits by USDA.

(3) Final Agency Decision (Adjudication)

- (a) If the complainant elects a FAD or does not make an election for either a hearing or a FAD within the 30-calendar day timeframe, OASCR will issue a FAD on the merits of complaints of discrimination. OASCR must issue the FAD within 60 calendar days of either:
 - 1 The request for a final decision on the record; or
 - 2 The expiration of the 30-calendar day period for the complainant to request a hearing if no hearing or decision request is submitted; or
 - 3 Within 120 calendar days of the date of filing of a mixed case complaint (see Section 6j, *Mixed Case Complaint Processing*).
- (b) When an EEOC AJ issues a decision dismissing the hearing request, OASCR will issue a FAD within the appropriate period of time indicated by the AJ in his or her order or pursuant to the timeframes in Section (3)(a) above.
- (c) When an EEOC AJ issues a decision on the merits of the case (*i.e.*, dismissal, or decisions with or without a hearing), OASCR will issue a FAO within 40 calendar days after receipt of the AJ's decision. For class complaints (see Section 8, *Class Complaints*), the OASCR will issue a FAO within 60 calendar

days after receipt of the AJ's decision. OASCR will not issue a FAD in these circumstances, but a FAO.

(4) Hearing

If the complainant elects an EEOC hearing, the request for a hearing must be submitted to the EEOC within 30 calendar days of receipt of the ROI. A copy of the request for a hearing must be submitted simultaneously to OASCR. The EEOC AJ assumes full responsibility for adjudicating the complaint including overseeing the development of the record as necessary and rendering a decision (e.g., finding, no finding, dismissal, or remand) and order.

(5) Appeals

- (a) The complainant may file an appeal, with the EEOC Office of Federal Operations, within 30 calendar days of receipt of a FAD or a FAO issued by the OASCR. If no FAO is issued, the complainant can appeal the decision of an EEOC AJ upon the conclusion of the OASCR's 40 calendar day review period.
- (b) Decisions on mixed-case complaints, and complaints filed on the bases of marital, familial or parental status, or political beliefs may not be appealed to the EEOC.

(6) Remand

A remand is an EEO complaint returned to USDA, by EEOC, for further action based on an appeal decision. USDA will process any remanded cases in accordance with EEOC Orders.

k. Mixed Case Complaint Processing

- (1) In cases where the employee files a Mixed Case Complaint, in addition to following the procedures outlined in Section 6i, *Formal Complaint Processing*, as applicable, the aggrieved person must choose whether to pursue a mixed case complaint through the Federal sector EEO process administered by EEOC, a mixed case appeal subject to Merit Systems Protection Board (MSPB) jurisdiction, or file a civil action in Federal District Court. Whatever action the individual files first is considered an election to proceed in that forum. [29 CFR § 1614.302\(b\)](#), *Mixed Case Complaints* outlines procedures and timeframes to avoid duplication of efforts.
- (2) For further information on mixed case complaints, see [29 CFR § 1614.302](#).

l. Posting of Violations and Statistical EEO Complaint Data

(1) Mission Area, agency, and staff office Heads must post:

- (a) A notice of discrimination as ordered by the ASCR, an EEOC AJ, or a Federal District Court Judge in the event of a finding of discrimination, where designated by the order;
- (b) Within 90 days of a finding of discrimination and to remain online for at least one year, in accordance with the Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020; and
- (c) Statistical data on the number of EEO complaints opened, filed, and resolved during the fiscal year using electronic media and other formats, on the Mission Area, agency, or staff office's website.

7. CONFLICT OF INTEREST COMPLAINTS

- a. All EEO complaints will be processed without conflicts of interest. USDA will take measures to prevent any such conflicts and, where possible, avoid perceived conflicts of interest. To ensure compliance with this requirement and to maintain the integrity of the EEO complaint program the same official(s) responsible for executing and advising on personnel actions may not also be responsible for managing, advising, or overseeing the EEO pre-complaint or complaint process. In addition, USDA will employ alternative complaint processing mechanisms, described below in this Section, to ensure complaints receive fair and impartial treatment.
- b. The potential for a conflict of interest arises in cases where a Responsible Management Official (RMO) or complainant serves in a role that would prevent the fair and impartial processing of a complaint, or the appearance of a fair and impartial process. The ASCR will designate a unit within OASCR independent of the main EEO division of OASCR to process complaints that may raise a conflict of interest or a potential conflict of interest.
- c. Per the guidance below, the conflict unit must be responsible for determining when a complaint meets the criteria for a conflict of interest. The conflict unit must have the discretion to return a complaint to the referring Mission Area, agency, or staff office to process by the main EEO division of OASCR if the conflict unit determines that no actual or perceived conflict of interest exists. For example, without limitation, the conflict unit may determine there is no actual or perceived conflict of interest where the conflict unit determines the alleged RMO is not in the complainant's chain of command; if the conflict unit determines the RMO did not participate in the alleged discriminatory act; or where a complaint asserts that an alleged RMO engaged in discriminatory behavior but said complaint makes no allegations related to the specific actions of said alleged RMO.

- d. When a conflict of interest or a perceived conflict of interest arises, the conflict unit must ensure an appropriate alternate processing mechanism is used that takes the complaint outside the influence of the alleged conflicted RMO. Per the guidance below, the conflict unit may handle all or part of the EEO complaint process as appropriate to safeguard the integrity of the EEO complaint process, including referring complaints to a third party for processing. Third parties may include private contractors, USDA Civil Rights offices that do not report through the alleged RMO's chain of reporting, or Federal agencies outside of the USDA.
- e. USDA will process conflict of interest complaints in accordance with the guidance set forth below.
 - (1) The conflict unit will arrange for informal, pre-complaint processing and will ensure that formal complaints (including FADs) are processed by an appropriate third party, in cases where:
 - (a) The alleged RMO or complainant is the ASCR, Deputy ASCR, Associate ASCR, and any person directly supervised by the ASCR;
 - (b) The alleged RMO or complainant is any person employed in the conflict unit;
 - (c) The alleged RMO or complainant is anyone employed in the Office of the Secretary; and
 - (d) The alleged RMO or complainant is the Mission Area, Agency, or Staff Office Head, or anyone directly supervised by the Mission Area, Agency, or Staff Office Head, where applicable.
- f. The conflict unit will handle informal, pre-complaint processing and formal complaint processing either directly, or through a third party in all cases involving complaints brought by, or alleging discrimination committed by employees of OASCR, or other than those identified in Section 7e, above.
- g. The conflict unit will handle informal, pre-complaint processing and formal complaint processing either directly, or through a third party in all cases involving complaints brought by, or filed against an Agency Civil Rights Director, or filed against anyone directly supervised by an Agency Civil Rights Director.
- h. The conflict unit will handle administration and will track processing times for all complaints identified as conflict cases to ensure investigations are completed within the allocated 180 calendar days, and all other regulatory timeframes are met. The conflict unit will develop a manual that provides further guidance on EEO complaint processing.

8. CLASS COMPLAINTS

- a. A class is a group of employees, former employees, or applicants for employment who, alleged to be or have been adversely affected by a personnel management policy or practice that discriminates against the group based on their race, color, religion, sex, , , national origin, age, disability, or genetic information.
- b. A class complaint is a written complaint of discrimination filed on behalf of a class by a class member (agent) who acts for the class during the processing of the class complaint.
- c. The Department will process class complaints per [29 CFR § 1614.105](#), *Pre-complaint Processing* and [29 CFR § 1614.204](#), *Class Complaints*.

9. REMEDIES

The policy of the Department is to attempt to make whole any individual who has been found to have suffered from discrimination. The Department will also attempt to resolve complaints, where the Mission Area, agency, or staff office deems it warranted, whether discrimination is explicitly found. Relief, up to and including the maximum possible relief, may be provided by a Mission Area, agency, or staff office to resolve the complaint at any stage.

10. RIGHT TO FILE A CIVIL ACTION

Nothing in this DR will prohibit any aggrieved person or complainant from filing an action in Federal District Court in accordance with the requirements of [29 CFR § 1614.407](#), *Civil Action: Title VII, Age Discrimination in Employment Act, Rehabilitation Act, and the Genetic Information Nondiscrimination Act*. However, there are certain bases (marital, familial, or parental status, or political beliefs) that may not be within the jurisdiction of the Federal District Court, if raised as the basis of a discrimination claim. Aggrieved persons or complainants should become aware of applicable case specific deadlines and prerequisites for filing civil actions. The filing of a civil action with a Federal District Court will result in USDA dismissing any administrative claims alleging the same act of discrimination.

11. OTHER RELATED PROVISIONS

- a. Civil Rights Data Base (DB)

The ASCR is responsible for and has the authority to administer the Civil Rights DB for the Department. The Civil Rights DB is an electronic computerized system which tracks and provides reports on EEO complaints based on data collected from discrimination complaints filed by USDA employees and applicants for USDA employment.

b. Mission Area, Agency, and Staff Office Options

Mission Areas, agencies, and staff offices may establish their own policies, directives, procedures, rules, and regulations for processing informal EEO complaints consistent with and in accordance with this DR. Any such document must be submitted to the ASCR for review and approval in writing, signed by the ASCR, prior to implementation. Notwithstanding approval by OASCR, any provision contained in a Mission Area, agency, or staff office's policy, directive, procedure, rule, and regulation that is inconsistent with the provisions of this DR must be superseded by the provisions of this DR.

c. Training

- (1) All employees working in civil rights including political appointees, and collateral duty and full-time civil rights practitioners should participate in annual civil rights training as directed by the ASCR. Training topics include, but are not limited to, anti-harassment, reasonable accommodation, religious accommodation, age discrimination, LEP, new EEO counselors and investigators, refresher training for experienced EEO counselors and investigators, civil rights compliance reviews, Complying with MD-715 and Creating a Model EEO Program, No FEAR Act, and Civil Rights Enterprise System (CRES) System (Database) Management.
- (2) For further information on Civil Rights Training, see [DR 4120-001](#), *Annual Departmental Civil Rights Training*.

12. INQUIRIES

All USDA Mission Areas, agencies, and staff offices will direct questions and inquiries about this DR to the Center for Civil Rights Operations (CCRO), Compliance Division by email at CCROCompliance@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ADR	Alternative Dispute Resolution
AJ	Administrative Judge
ASCR	Assistant Secretary for Civil Rights
CCRO	Center for Civil Rights Operations
CFR	Code of Federal Regulations
CRES	Civil Rights Enterprise System
DG	Departmental Guidebook
DR	Departmental Regulation
EEO	Equal Employment Opportunity
EEOC	Equal Employment Opportunity Commission
FAD	Final Agency Decision
FAO	Final Agency Order
FLRA	Federal Labor Relations Authority
IAA	Inter-Agency Agreement
LEP	Limited English Proficiency
MD	Management Directive
MSPB	Merit Systems Protection Board
NAD	National Appeals Division
No FEAR Act	Notification and Federal Employee Anti-Discrimination and Retaliation Act
NRF	Notice of Right to File
OASCR	Office of the Assistant Secretary for Civil Rights
P.L.	Public Law
RMO	Responsible Management Official
ROI	Report of Investigation
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Agency. Organizational units of the Department, other than staff offices as defined below, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary. (Source: USDA, [DR 0100-001](#), *USDA Departmental Directives System*)

Agency Head. The administrator, chief, or director of an Agency who is the official named or designated to have primary responsibility for the management of the Agency as delegated under. (Source: [7 CFR Part 2.4](#), *Delegation of Authority by the Secretary of Agriculture, General Officers*)

Alternative Dispute Resolution (ADR). An array of techniques used to achieve consensual resolution of disputes, generally with the assistance of a neutral third party. (Source: USDA, [Departmental Guidebook \(DG\) 0100-002](#), *USDA Departmental Directives Definitions Glossary*)

Applicant. An individual seeking employment with USDA or its agencies. (Source: USDA, DG 0100-002)

Assistant Secretary for Civil Rights (ASCR). The civil rights official for USDA with authority per [7 CFR §2.25](#), *Assistant Secretary for Civil Rights* for the performance and oversight of civil rights functions within USDA, including the authority and discretion to delegate civil rights functions to Agency Heads and offices.

Basis. The ground(s) upon which an aggrieved person or complainant alleges that a USDA official or employee has engaged in prohibited discriminatory behavior. (Source: USDA, DG 0100-002)

Civil Rights Director. An individual appointed by the Agency Head, that is responsible for the implementation of an equal employment program and for federally assisted and federally conducted programs to promote equal employment opportunity and to identify and eliminate discriminatory practices and policies. For the purposes of this DR, the Civil Rights Director will also serve as an EEO Director per 29 CFR § 1614.102(b)(4). (Source: USDA, DG 0100-002)

Conflict of Interest Complaint. An EEO complaint involving facts or allegations that are determined to pose an actual or perceived conflict between a responsible management official or complainant's position or personal interest, and USDA's responsibility to administer a fair, impartial investigative process and resolution of complaints. (Source: USDA, DG 0100-002)

Employee. An individual employed or previously employed in any position within USDA. Contractors, interns, and volunteers may be included under this definition; however, specific

criteria must be met for them to be classified as an “employee” for EEO purposes. (Source: USDA, DG 0100-002)

EEO Complaint Process. All actions and procedures undertaken in an EEO complaint, including but not limited to, counseling, acceptance, dismissal, investigation, ADR, hearing, final agency decision, appeal, remand, and the right to file a civil action. (Source: USDA, DG 0100-002)

EEO Counselor. Any agency or contracted employee who, serving as a neutral, provides an aggrieved individual with their rights and obligations under equal employment opportunity laws, gathers limited data and may attempt an informal resolution where ADR is not offered or accepted, pursuant to 29 CFR Part 1614. (Source: EEOC, [EEO MD-110](#))

U.S. Equal Employment Opportunity Commission (EEOC). The agency responsible for enforcing Federal laws making it illegal to discriminate against a job applicant or an employee because of the person’s race, color, religion, sex (including pregnancy), national origin, age (40 or older), disability, or genetic information. (Source: EEOC, [Overview](#) webpage)

Familial Status. An individual's family composition, including the makeup of their household, or other family relationships. (Source: USDA, DG 0100-002)

Formal EEO Complaint. A written statement of alleged employment discrimination filed after the completion of the informal (pre-complaint) process that initiates the formal EEO complaint process. (Source: USDA, DG 0100-002)

Informal EEO Complaint. The first stage in the EEO complaint process that must take place before the initiation of a formal complaint of discrimination in which the aggrieved person exhibits intent to begin the EEO process by presenting allegations of discrimination to an EEO Counselor. This term is commonly interchanged with the word “pre-complaint.” (Source: USDA, DG 0100-002)

Issue(s). The action(s) or decision(s), including failure to act or decide, or policy(ies) that allegedly violate(s) civil rights laws and policies that prohibit discrimination in USDA employment or in the employment application process. (Source: USDA, DG 0100-002)

Marital Status. The state of a person being married, unmarried (single, divorced, widowed), or separated. (Source: USDA, DG 0100-002)

Mission Area. A group of agencies with related functions that report to the same Under or Assistant Secretary. Research, Education, and Economics (REE) is an example of a Mission Area. (Source: USDA, DR 0100-001)

Mixed Case Complaint. A complaint of employment discrimination filed with a federal agency based on race, color, religion, sex, national origin, age, disability, or genetic information

related to or stemming from an action that can be appealed to the MSPB. The complaint may contain only an allegation of employment discrimination or it may contain additional allegations that the MSPB has jurisdiction to address. (Source: [29 CFR §1614.302\(b\)](#))

Parental Status. Status of an individual who, with respect to an individual who is under the age of 18 or who is 18 or older but is incapable of self-care because of a physical or mental disability, is a biological parent, an adoptive parent, foster parent, stepparent, custodian of a legal ward, in loco parentis over such individual, or actively seeking legal custody or adoption of such an individual. (Source: [Executive Order 13152](#), *Further Amendment to Executive Order 11478*, *Equal Employment Opportunity in the Federal Government*, May 2, 2000)

Responsible Management Official (RMO). The EEO ADR session official(s) who, according to the complainant's allegations, is (are) responsible for the action or made the decision that harmed the complainant. An RMO may not be the designated Resolving Official in an ADR session. The RMO is sometimes identified as the "Responding Management Official." (Source: USDA, [DR 4710-001](#), *Alternative Dispute Resolution*)

Staff Office. Departmental administrative offices whose heads report to officials within the Office of the Secretary. Staff offices provide support to Department officials and employees at all levels and they support our programs and services by working with USDA agencies, Congress, organizations, and tribal governments. (Source: USDA, DR 0100-001)

APPENDIX C

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